



DEPARTMENT OF EDUCATION

Colorado State Board of Education

RULES FOR THE ADMINISTRATION OF THE EDUCATIONAL STABILITY GRANT PROGRAM FOR HIGHLY MOBILE STUDENTS

1 CCR 301-104

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

0.0 STATEMENT OF BASIS AND PURPOSE

The Educational Stability Grant Program, 22-32-138.5, C.R.S., requires the State Board of Education to adopt rules for the implementation of the grant program. At a minimum, the rules must include: timelines and procedures associated with the application process and information to be included in the grant applications.

1.0 DEFINITIONS

- 1.1 "County department" has the same meaning as provided in section 19-1-103 (32), C.R.S.
- 1.2 "Department of education" means the department of education created in section 24-1-115, C.R.S.
- 1.3 "Division of youth services placement facilities" means a secure facility or contract community residential program of the division of youth services in the state department of human services.
- 1.4 "Education provider" means a school district, the state charter school institute, or a board of cooperative educational services that operates a school, public school of a school district, a school operated by a board of cooperative educational services pursuant to article 5 of title 22, C.R.S., an institute charter school authorized pursuant to part 5 of article 30.5 of title 22, C.R.S., a state-licensed day treatment facility, an approved facility school as defined in section 22-2-402 (1), C.R.S.
- 1.5 "Highly mobile students" means children or youth who at any time during the academic year were homeless, as defined in section 22-1-102.5, C.R.S.; were in noncertified kinship care, as defined in section 19-1-103, C.R.S.; were students in out-of-home placement, as defined in section 22-32-138(1)(h), C.R.S.; or were migrant children, as defined in section 22-23-103, C.R.S.
- 1.6 "Student in out-of-home placement" means a student who at any time during an academic term is in foster care and receiving educational services through a state-licensed day treatment facility, who is otherwise in placement out of the home as that term is defined in section 19-1-103 (85), C.R.S. or who is in placement outside of the home as a result of an adjudication pursuant to article 2 of title 19, C.R.S. It includes a child or youth who transfers enrollment as a result of being returned to his or her home at the conclusion of out-of-home placement.

2.0 IMPLEMENTATION OF THE EDUCATIONAL STABILITY GRANT PROGRAM

- 2.1 The department of education shall create and administer the educational stability grant program to provide grant money to education providers to use in providing academic and social-emotional services and supports to highly mobile students.

- 2.2 Subject to available appropriations, commencing with the 2019-20 fiscal year, the Colorado State Board of Education shall award educational stability grants to eligible applicants, which include preschool, elementary, and secondary education providers from money appropriated from the educational stability grant program fund.

3.0 AWARD PROCESS

- 3.1 Each education provider that seeks a grant under these rules must submit an application to the department of education in accordance with these rules.
- 3.2 The department of education shall review the applications received and recommend recipients and grant amounts to the state board. The state board shall annually award grants after considering the department's recommendations.
- 3.3 In recommending awards to the state board, the department may consider geographic distribution, scope of problem, and results of annual program review as described in section 5 of these rules in addition to the application information required as a part of section 4.3 of these rules.
- 3.3.1 The department will outline specific priorities, duration of grants, and scoring criteria as part of the request for proposal process.

4.0 TIMELINE AND PROCEDURE

- 4.1 The timeline is only in effect based on the availability of funds.
- 4.2 Grant applications shall be submitted to the department of education by June 30, 2019 and by June 30 in subsequent years in which the grant is funded.
- 4.3 Each grant application submitted must include:
- 4.3.1 The number of highly mobile students the education provider served in the previous school year. These data may be requested from the department of education;
- 4.3.2 A description of services to be provided through the grant, including a description of innovative practices to address barriers for students. Such description may emphasize innovative practices that address barriers and increase opportunities for highly mobile students, including collaboration with school-community partnerships, division of youth services placement facilities, or county agencies; and specialized academic and career planning for students served by the grant;
- 4.3.3 A description of the need for the services funded by the grant. The description should include, as appropriate, data analysis reflecting the stated needs, such as a needs assessment, analysis of contributing community conditions, analysis of academic performance factors, or gap analysis for the population to be served by the grant;
- 4.3.4 An estimated cost of services that would be funded by the grant;
- 4.3.5 An explanation of the criteria that will be used to measure the effectiveness of the services;
- 4.3.6 A description of the education provider's existing policies and practices relating to the transfer of student records between education providers;

- 4.3.7 A description of the education provider's collaboration with county departments to make best-interest determinations and to provide any necessary transportation and services when needed as outlined in section 22-32-138, C.R.S.;
- 4.3.8 A description of the services the education provider will provide for highly mobile students who receive special education services. Such description should include, at a minimum, the education provider's plans to review, update, and implement Individual Education Plans (IEPs) and Section 504 plans;
- 4.3.9 A description of practices to allow access to extracurricular activities for highly mobile students and, in particular, for highly mobile students who receive special education services;
- 4.3.10 A description of the transition practices relating to school moves for highly mobile students. Such description may include details on the education provider's student induction programs, policies for immediate records transfer of highly mobile students, or new student orientation procedures;
- 4.3.11 A description of how the education provider will promote engagement in academic supports, such as work-based learning. "Work-based learning" has the same meaning as set forth in section 8-83-601(15), C.R.S; and
- 4.3.12 If previously awarded funds under this grant program, a description of how the previously funded services have been sustained in the time period between the end of the first grant and application for additional funds and a description of the effectiveness of services provided with previous funding.

5.0 ANNUAL REVIEW AND REPORTING

- 5.1 On or before March 31 of each year for which grants are to be distributed, the department of education shall evaluate the educational stability services provided by each education provider that received a grant in the preceding fiscal year.
- 5.2 At a minimum, the department of education shall review the outcomes and effectiveness of services provided as measured by the demonstrated degree of educational stability. The analysis of the degree of educational stability should examine:
 - 5.2.1 The improvement in school attendance;
 - 5.2.2 The reduction in behavioral and discipline incidents;
 - 5.2.3 The increase in grade-level promotion;
 - 5.2.4 The reduction in the dropout rate; and
 - 5.2.5 The increase in the graduation and completion rates for the grant recipients' schools.
- 5.3 The department of education shall report the evaluation results to the education committees of the senate and of the house of representatives, or any successor committees, in conjunction with the report on Dropout Prevention and Student Re-Engagement submitted pursuant to section 22-14-111, C.R.S.

Editor's Notes

History

New rule eff. 05/18/2019.

Rules 4.3.2-4.3.12 eff. 12/30/2022.